

Santosh Kumar Jaiswal v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 17 September 2020 · WRIT - C No. 13883 of 2020 · **Writ disposed of with directions under Clauses 6.5 and 6.14; connection to be restored on deposit of the first instalment and usual restoration charges.**

HEADNOTE

On the electricity respondents' statement that bill-correction and instalment grievances would be considered under Clauses 6.5 and 6.14 of the U.P. Electricity Supply Code, 2005, the High Court disposed of a writ seeking restoration and revision of bills by directing respondent no. 4 to determine the amount and consider instalments within a week of a certified copy. On deposit of the first instalment and usual restoration charges, the disconnected connection was to be restored immediately.

FACTUAL SUMMARY

Santosh Kumar Jaiswal of House No. 18/8, Digiya Jaitpura, Varanasi, filed this writ after disconnection of electricity service connection No. 2259811000. He sought mandamus to restore supply within twenty-four hours, to have his bills revised and a fresh bill issued, and to pay outstanding dues in easy instalments without penal charges or interest. Counsel pressed those prayers. Counsel for the electricity respondents stated that respondent no. 4 would consider bill-correction and instalment grievances within a week.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-dispute-determination-and-restoration-on-first-instalment

HOLDING

Where the licensee undertakes to consider correction of disputed bills and grant of instalments under Clauses 6.5 and 6.14 of the U.P. Electricity Supply Code, 2005, the writ court may dispose of a restoration petition by directing the designated officer to redress the billing grievance, determine the amount, and consider instalments within a stipulated time, and may further direct that on deposit of the first instalment and usual restoration charges the disconnected supply shall be restored immediately. ¶ 5

HOLDING-UNIT · UP-2005::6.14

instalment-facility

HOLDING

Respondent no. 4 was directed to consider grant of instalments for payment of the determined electricity dues in terms of Clause 6.14 of the U.P. Electricity Supply Code, 2005; restoration was to follow deposit of the first instalment together with usual restoration charges. ¶ 5

PRINCIPLE TAGS

clause-6.5-statutory-remedy-disputed-bill The Court did not itself revise or quash the bills; it directed respondent no. 4 to redress the billing grievance and determine the amount in terms of Clause 6.5. ¶ 4-5

installment-payment-clause-6.14 The Court directed respondent no. 4 to consider grant of instalments under Clause 6.14, with restoration of supply on deposit of the first instalment and usual restoration charges. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DISPUTED BILLS AND THE QUANTUM PAYABLE

Left to respondent no. 4 to determine under Clause 6.5; the Court did not itself revise or quash any bill. ¶ 5

Only consideration of instalments under Clause 6.14 was directed; the prayer to deposit without penal charges or interest was not decided. ¶ 5

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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.